

Signing Off a Care and Support/Support Plan and Agreeing a Final Personal Budget



AMENDMENT

In December 2024, this chapter was amended to reflect feedback received following a full tri.x legal review of the Care Act 2014 Resource section, Meeting Needs.

[December 16, 2024](#)

1. Using this Procedure

These procedures should be used to agree a final personal budget and sign off Care and Support/Support Plan relating to a person with Care and Support needs or a carer with Support needs.

2. Submitting a Draft Plan (Practitioner Guidance)

The draft Care and Support/Support Plan should only be submitted for authorisation when you are satisfied that:

- a. The person was as involved in the plan as they wanted to be;

- b. The plan promotes individual Wellbeing;
- c. The person's/carer's outcomes and the steps they can take to achieve them have been explored from a strengths based approach;
- d. A range of methods to meet needs has been explored from a strengths based approach;
- e. The method proposed in the draft plan to meet needs is appropriate and proportionate, taking into consideration the person's/carer's needs, Wellbeing, available services and indicative personal budget;
- f. Risks to the plan have been explored and a contingency plan agreed;
- g. Opportunities to provide information and advice and to access prevention services have been maximised; and
- h. The method of managing the personal budget has been agreed, with Direct Payments promoted where appropriate.

For information about what must be recorded in the plan, see: [Recording a Care and Support/Support Plan](#).

2.1 Delegated draft plans

When the Care and Support/Support Planning process was delegated you are still responsible for ensuring that the draft plan submitted meets the requirements for sign-off.

2.2 If the proposed personal budget is greater than the indicative budget

When the cost of the plan is greater than the amount of the indicative budget you need to ensure that additional information is provided in a proportionate and appropriate way to support the authoriser to reach an informed decision about the need to increase the indicative budget amount.

In particular you will need to demonstrate:

- a. That a strengths based approach to meeting needs has been taken;
- b. The range of options that have been explored to meet needs (particularly that these have been appropriate and proportionate to the level of need);

- c. The rationale for decisions when exploring the best way to meet needs (including why alternative options were not deemed appropriate, how outcomes and Wellbeing have been regarded and that there has been a positive approach to risk taking); and
- d. The options to reduce, prevent or delay needs that have been explored.

2.3 The process of submitting the draft plan

When you are satisfied that the draft Care and Support/Support Plan meets all requirements it should be submitted for sign-off in line with local processes.

3. Signing Off a Plan (Guidance for Authorisers)

3.1 Transparency, timeliness and Sufficiency

These are the 3 principles in the Care Act that apply to any process that will decide a personal budget.

See: [Deciding the Indicative Budget and Personal Budget Amounts](#) to read more about these principles and the Care Act requirements when signing off a Care and Support Plan.

You must make sure that the process you use to sign off Care and Support/Support plans and agree final personal budgets is robust and consistent. The process should not allow for a variance in how budgets are decided or situations where people with similar needs receive different outcomes from the process.

tri.x has developed a tool that can be used as required to support consistent decision making when signing off plans and agreeing final personal budgets.

See: [Care and Support Plan Sign Off Tool](#).

3.2 In all cases

The final plan must:

- a. Be appropriate and proportionate to meet the eligible needs of the person/carer;
- b. Contain clear outcomes for review purposes; and
- c. Represent the best use of *available* resources (both local services and Local Authority financial resources).

When considering each of the above you must have regard for the person's/carer's Wellbeing and outcomes at all times and be able to demonstrate that you have taken into account their reasonable preferences about how to meet needs when signing off the plan and agreeing the final personal budget.

You should consider all of the evidence and information provided by the social care practitioner during the sign off process. If you require further information from the social care practitioner you should request it before signing off the plan.

Helpful questions to ask during the sign off process include:

- a. Has the person been involved in the plan (is there evidence that they have been supported by an appropriate person or representative)?
- b. Will the plan promote individual Wellbeing?
- c. Is it clear from the plan what the person's/carer's outcomes are (and are they realistic)?
- d. Is it clear how the plan will support the person/carer to achieve their outcomes (including how any care and support services will contribute to this)?
- e. Will the plan promote the person's/carer's independence, choice and control over how their needs are met and outcomes achieved?
- f. Does the plan maximise opportunities to prevent, reduce or delay needs?
- g. Does the plan demonstrate that a strengths approach to meeting needs has been used (rather than a traditional service led approach)?
- h. Do the services/support options explored make best use of available resources (both local services and Local Authority financial resources)?
- i. Is the level/intensity of service/support in the plan proportionate to meet the person's/carer's needs and manage risk?
- j. Is the type of service/support in the plan appropriate and proportionate to meet the person's/carer's needs (for example, if the service/support is specialist is this level of specialism required)? and

k. Is any contingency plan proportionate to the level of need and risk?

Need to know

When considering whether the plan makes the best use of available services you must only consider:

1. Services that are able to meet the person's/carer's eligible needs;
2. Services that are available at the point they are required.

If the available services cost more than the indicative budget the final personal budget must be adjusted to reflect the true cost of the services at that time.

3.3 Direct Payments

When the method of managing the personal budget (or part of the budget) is to be a Direct Payment there are additional considerations that you must make before signing off the plan. These considerations are in relation to:

- a. The appropriateness of a Direct Payment based on the person's/carer's needs and circumstances; and
- b. Whether the cost of meeting needs through a Direct Payment represents the most effective use of Local Authority resources.

The appropriateness of a Direct Payment

Before signing off the plan you must be satisfied:

- a. That the person who will be receiving the Direct Payment is able to manage it;
- b. That the Direct Payment is not going to be used to pay for Care and Support provided by a relative living in the same household as the person (unless there has been prior agreement due to the specific circumstances of the person);

- c. From the information available to you that the person with care and support needs is not subject to a requirement, license or order that requires them to undertake drug or alcohol rehabilitation, behaviour therapy or testing.

If you have any concerns about the appropriateness of a Direct Payment you should discuss this with the social care practitioner before signing off the plan. Unless it is clear that the criteria for a Direct Payment has not been met then you should still agree the Direct Payment, but it may be necessary to impose some conditions on the provision and use of a Direct Payment, such as:

- a. Prohibiting a named person from providing care;
- b. Increasing the frequency of Direct Payment reviews; or
- c. Requiring certain information is provided at specific times to ensure effective monitoring of the Direct Payment.

See the [Direct Payments Procedure](#) for further guidance.

The cost of a Direct Payment

If the plan proposes a Direct Payment being used to employ one or more personal assistant you must take into account any additional costs associated with fulfilling the associated legal requirements of being an employer in any final personal budget amount. These should be clearly recorded on the draft Care and Support Plan.

If the plan does not propose using the Direct Payment to employ a personal assistant, but instead to commission more traditional services you should be satisfied that this represents the best use of the financial resources available to the Local Authority. In making a decision about this you must consider:

- a. Whether the service could be commissioned directly by the Local Authority at a higher or lower cost than through a Direct Payment;
- b. Whether the service would be able to provide the level of flexibility required if commissioned by the Local Authority; and
- c. What the implications would be for the person's Wellbeing or outcomes if the Local Authority commissioned the service directly.

If the service proposed is a service that the Local Authority could commission in the same way but at a lower cost, you should discuss whether a Direct Payment is still the most appropriate method of managing that element of the personal budget with the social care practitioner before signing off the plan.

The Local Authority is not required to set the amount of the personal budget higher where the cost of an alternative provider arranged via a direct

payment is more than the cost to the Local Authority of arranging the same support whilst achieving the same outcomes for the person.

3.4 Signing off the plan and deciding the final personal budget

Regardless of whether the proposed personal budget is less than, equal to or greater than the indicative budget you must agree it when the plan:

- a. Is appropriate and proportionate to meet needs;
- b. Makes the best use of available resources; and
- c. Where a Direct Payment is used this is appropriate and cost effective.

This should be done in line with local processes and requirements.

You should not agree the plan or proposed budget if this is not the case. Instead it should be returned to the social care practitioner who submitted it.

When returning a plan you must:

- a. Be clear about the reasons that the plan has not been signed off at that time;
- b. Suggest steps that the practitioner may take to resolve the issues identified.

When the social care practitioner re-submits the plan it should be considered again.

4. When a Care and Support/Support Plan is Signed Off

4.1 Finalising the plan

When the plan is signed off and the final personal budget amount agreed the Care and Support/Support Plan must be updated to ensure that it contains all of the required information relating to the personal budget:

- a. The cost to the Local Authority of meeting the needs in the plan;
- b. The amount which, on the basis of the financial assessment, the person/carer must pay towards the cost; and
- c. The amount which the Local Authority is going to contribute towards the cost.

Where there is a difference between the total cost of the plan and the personal budget, the amount that anyone else is going to pay should be clearly recorded on the plan.

4.2 Providing a copy of the plan to the person/carer

You should contact the person/carer whose plan it is (or their representative) to let them know that it has been signed off as soon as possible after being notified.

Following the sign off process the person/carer **must** be given a written record of the Care and Support/Support Plan.

It is important that the person/carer understands:

1. The Care and Support/Support Plan; and
2. How their personal budget has been decided.

If you are of the view that the person/carer will experience substantial difficulty understanding the plan then you must make sure that appropriate support is in place, including consideration of the duty to provide an independent advocate.

If an independent advocate is already in place they should be informed when the plan has been provided so they can support the person/carer to understand it.

4.3 Providing a copy to others

Care and Support Plans

In the case of a Care and Support Plan, a copy should normally be shared in full with any carer unless the person has capacity and has asked you not to share the plan, or to share only part of the plan. In this case you will need to discuss and agree which elements of the plan are to be shared having regard for confidentiality.

In all other cases a copy of the Care and Support Plan can only be shared with the person's consent (or in their best interests if they lack capacity to consent).

If the person consents (or lacks capacity and a best interest decision is made) a copy of the plan should be shared with any service provider who will be responsible for providing Care and Support to the person.

A copy must also be shared with anyone that the person requests you share a copy with, even if they were not involved in the planning process itself.

Support Plans

You can only share the Support Plan if the carer consents.

A copy must also be shared with anyone that the carer requests you share a copy with, even if they were not involved in the planning process itself.

Concerns about a request

You must provide a copy of the plan to anyone that the person requests you to unless:

- a. It is a Care and Support Plan, the person lacks capacity and you make a decision that sharing would not be in their best interests; or
- b. You are concerned that doing so could put the person (or another vulnerable adult or child) at risk of abuse or neglect.

If this situation arises you should seek advice from your line manager and decide whether:

- a. To share the record in full as requested;
- b. To share the record partially, omitting sections where information could put the person at risk; or
- c. To decline to provide a copy of the record (although the person/carers can of course still choose to make a copy available from their own record).

4.4 Amending a Care and Support/Support Plan

Sometimes the person (or their representative if they lack capacity)/carer may ask for amendments to be made to the Care and Support/Support Plan. You should:

- a. Consider the request;
- b. If the person/carers whose Care and Support Plan it is has not made the request, consult with them (or their representative if they lack capacity); and
- c. Review any evidence or information you have which may support or refute the request.

If you reach an agreement with the person/carers about the need to amend the plan you should do so.

The amended plan will need to be signed off but this should be done in a proportionate way to reflect the level of the changes made to the plan. This may or may not involve a full sign off process.

The amended plan should be circulated to the same people as the original plan, unless the person/carers requests otherwise.

If you are unable to reach an agreement with the person/carers and you feel that an amendment is not required you should not make the amendment. You should be clear about your reasons for not making the amendment and you must make the person/carers aware of their right to complain about your decision.

5. When a Care and Support/Support Plan is not Signed Off

5.1 Understanding why the plan has not been signed off

The draft plan will not have been signed off for one of 2 reasons:

- a. It is not appropriate or proportionate; or
- b. It does not make effective use of available resources.

The authoriser who has returned the plan to you should have explained the reasons that the plan has not been signed off.

They should have also suggested the steps that you need to take to resolve the issues with the plan before resubmitting it for sign off.

If it is not clear to you what the issue with the plan is then you should:

- a. Discuss this with your line manager; or
- b. Discuss this with the authoriser (if this was not your line manager).

5.2 Resolving the issues with the plan

When you understand why the plan has not been signed off you should think about the steps that you now need to take.

A request for information

Where a plan has not been signed off because you did not provide sufficient information or evidence to enable a decision to be made, you should consider whether this information is available. If it is available you should provide it and resubmit the plan for sign off.

If the information is not available you should consider how it can be gathered and make arrangements to do so, having full regard for the Caldicott Principles, Data Protection Legislation and local information sharing policies.

A need to revise the plan

Where a plan has not been signed off because there is a particular element that has raised a query you should:

- a. Establish whether you have information or evidence that can be submitted to resolve the query;
- b. Make arrangements to undertake (or revisit) steps of the Care and Support/Support Planning process as required.

When you have taken the necessary steps and made any amendments to the draft plan it should be resubmitted.

Example:

The draft Care and Support Plan Clare submitted for sign off has not been agreed because it is unclear from the plan whether available services to prevent, reduce or delay needs have been explored. Clare knows that she explored this as part of the planning process, locates her notes and realises that she did not adequately transfer the information onto the draft plan. Clare amends the plan and resubmits it.

Example:

The draft Care and Support Plan is returned to Joe because it is felt that the services on the plan are disproportionate to the needs of the person and that less intensive services would better meet the person's outcomes. Joe did not fully explore the range of available services with the person during the planning process and makes arrangements to do so now. This identifies a health service that would be able to meet some of the identified needs and the plan is amended.

Example

The draft Care and Support Plan Peter submitted has not been signed off because the Direct Payment is to be used to pay the person's mother to provide care and it is unclear from the information provided whether she lives in the same household. Peter amends the plan to confirm the mother does not live with the person and resubmits it.

5.3 Notifying the person/carer

You should notify the person (or their representative)/carer that the plan has not been signed off and the reasons for this at the earliest opportunity.

Where you have been able to provide additional information and resubmit the plan you should confirm to the person/carer the new timeframe for sign off.

Where you are required to undertake (or revisit) steps of the Care and Support/Support Planning process you should agree how best to do so with the person/carer.

The right to complain

If the person/carer (or their representative) is unhappy with the decision not to sign off the plan you must make them aware of their right to complain about the decision.

5.4 Urgent and Interim Support

If there are urgent needs you may need to arrange interim services to ensure that these are met during any extended Care and Support/Support planning sign off process. If this is the case, see: [Urgent or Interim Support](#).

Last Updated: December 16, 2024

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